IN THE HIGH COURT OF JUDICATURE AT ALLAHABAD
CIVIL MISC. WRIT PETITION NO. 8842 OF 2024
(Under Article 226 of the Constitution of India)

Smt. Kamla Devi,
W/o Late Shri Ram Prasad, aged about 61 years,
R/o Village Rampur, Tehsil Sadar, District Varanasi
... Petitioner

Versus

1. State of Uttar Pradesh, through the Principal Secretary, Department of Revenue, Lucknow
2. The Collector, District Varanasi
3. The Tehsildar, Tehsil Sadar, District Varanasi

... Respondents

SYNOPSIS AND LIST OF DATES

12/01/2019 Mutation entered in favour of the Petitioner
04/08/2023 Impugned order passed by Respondent No. 3 cancelling the mutation without notice to the Petitioner
19/02/2024 Appeal rejected by Respondent No. 2

WRIT PETITION

The Petitioner most respectfully submits as under:

1. That the Petitioner is a widow and an agriculturist and is the recorded tenure holder of plot bearing Khasra No. 214/2 measuring 0.842 hectare situated in Village Rampur.

2. That by the impugned order dated 04/08/2023 Respondent No. 3 cancelled the mutation recorded in favour of the Petitioner without issuing any notice and without affording any opportunity of hearing, in gross violation of the principles of natural justice and of Articles 14 and 300A of the Constitution.

3. That the appeal preferred by the Petitioner was rejected by Respondent No. 2 by a non-speaking order dated 19/02/2024.

4. That the Petitioner has no other efficacious alternative remedy and is therefore constrained to approach this Hon'ble Court by way of the present writ petition.

PRAYER

It is therefore most respectfully prayed that this Hon'ble Court may be pleased to:

(i) issue a writ of certiorari quashing the impugned order dated 04/08/2023 passed by Respondent No. 3 and the appellate order dated 19/02/2024 passed by Respondent No. 2;

(ii) issue a writ of mandamus commanding the Respondents to restore the mutation in favour of the Petitioner; and

(iii) pass such other order as this Hon'ble Court deems fit.

Allahabad
Dated: 06/05/2024

Counsel for the Petitioner
Shri Devendra Kumar Mishra, Advocate